

Conditions of Contract — Particular Conditions

Kestrel Flyover Interchange Project — Package KFI-2

Document Reference:	KFI2-PC-2019
Date:	20-May-2019
Contract No.:	KMDA/KFI2/CW/2019-04
From:	Kaldera Metropolitan Development Authority (Employer)
To:	Ashgrove Infrastructure Consultants (Engineer); Rennick Builders Ltd. (Contractor)
Employer:	Kaldera Metropolitan Development Authority
Engineer:	Ashgrove Infrastructure Consultants
Contractor:	Rennick Builders Ltd.

PREFATORY NOTE

These Particular Conditions amend and supplement the General Conditions of Contract in the respects, and to the extent, set out below. Save as expressly stated in these Particular Conditions, the General Conditions remain of full force and effect. Any Sub-Clause not mentioned in these Particular Conditions is unamended.

PART A — AMENDMENTS RELATING TO NOTICES

A.1 — Notice Addresses and Communication Protocol

Wherever the Contract requires a notice, certificate, determination or instruction to be given or issued by one Party to the other, or by the Engineer to either Party, it shall be in writing and shall be treated as validly given only once received at the address nominated by the recipient for that purpose in the Contract Data, or at such other address as the recipient may from time to time nominate in writing. A notice sent by electronic mail to a nominated electronic address shall be treated as received at the time shown on the sender's transmission record.

PART B — AMENDMENTS RELATING TO THE ENGINEER

B.1 — Engineer's Delegated Representative

The Engineer shall appoint, and notify to the Contractor before the Commencement Date, a Resident Engineer who shall be based at the Site and who is hereby delegated the Engineer's authority to give day-to-day instructions, to witness and approve measurement, and to issue a notice under Sub-Clause 15.1 on the Engineer's behalf. The Resident Engineer's authority does not extend to a notice of termination under Sub-Clause 15.2 or a Final Payment Certificate under Sub-Clause 15.4, both of which are reserved to the Engineer personally.

PART C — AMENDMENTS RELATING TO CLAUSE 15 (TERMINATION BY EMPLOYER)

C.1 — Minimum Period for a Notice to Correct

Sub-Clause 15.1 is supplemented as follows. A notice given under Sub-Clause 15.1 shall state a period of not less than the minimum period stated in the Contract Data, and shall identify, by reference to the Contractor's then-current accepted programme and the Contractor's own monthly progress reports, the specific respects in which the Contractor has failed to proceed with the Works with due diligence.

C.2 — Confirmation of Termination Procedure

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For the avoidance of doubt, a notice of termination given under Sub-Clause 15.2 in reliance on the Contractor's failure to remedy a notice given under Sub-Clause 15.1 shall not be given before the period stated in that Sub-Clause 15.1 notice has expired, and shall identify the Sub-Clause 15.1 notice relied upon and the manner in which the Contractor failed to remedy it.

[END OF PARTICULAR CONDITIONS]
